

State vs Deepak Etc on 10 June, 2025

TC 3196/2025
STATE Vs. DEEPAK & Anr.
(Kotwali Traffic Circle)

IN THE COURT OF GOWRI REGHUNATH : JMFC-10
CENTRAL DISTRICT : TIS HAZARI COURT : DELHI

TC 3196/2025
STATE Vs. DEEPAK & Anr.
(Kotwali Traffic Circle)

1. Case No. of the case	:	3196/2025
2. The date of offence	:	16.04.2025
3. The name of the accused persons	:	(1) Deepak s/o Sh. Mahipal Kumar (2) Poonam w/o Deepak
4. The offence complained	:	u/s 3/181, 185 & 5/180 M.V. Act
5. The plea of the accused persons :		Not guilty
6. Date of institution of the case	:	19.04.2025
7. Date of reserving the order	:	19.05.2025
8. The date of order	:	10.06.2025
9. The final order	:	Accused Deepak is acquitted u/s 185 M.V. Act and convicted u/s 3/181 M.V. Act. Accused Poonam is convicted u/s 5/180 M.V. Act.

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JUDGMENT

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1. Vide this judgment, this court shall dispose of two traffic challans bearing no. DL20568250416200202 and DL20568250416200839 dated 16.04.2025, issued against accused Deepak under Section 3/181, 185 of the Motor Vehicles Act, 1988 (hereinafter referred to as M.V. Act) and against accused Poonam under Section 5/180 M.V. Act respectively.

2. In brief, the case of the prosecution is that on the aforesaid date at about 08:00 p.m. at Kodia Pul, within jurisdiction of traffic circle Kotwali, accused Deepak was found plying a motorcycle bearing registration no. DL-5SCU-4847 which was owned by accused Poonam, without a driving license, and he was drunk driving having 109mg/100ml of alcohol. The case against accused Poonam is that being the owner of the vehicle, she permitted accused Deepak to drive the vehicle in an unauthorized manner without a driving license. Upon issuance of the present challans for the aforesaid offences, the vehicle of the accused was impounded at the spot.

3. The challans were taken up before this court on 19.04.2025 upon appearance of both accused persons. Cognizance was taken of the offences stated in the challan. As the said offences are bailable, accused Deepak was admitted to bail on furnishing of bail bonds and accused Poonam was admitted to bail on furnishing of personal bonds.

4. As per Section 274 BNSS, notice was framed on accused Deepak under Section 3/181, 185 M.V. Act, and against accused STATE Vs. DEEPAK & Anr.

(Kotwali Traffic Circle) Poonam under Section 5/180 M.V. Act to which the accused pleaded not guilty and claimed trial.

5. Since the accused chose to contest the challan, an application for release of the vehicle was filed. Vide order dated 21.04.2025, the said vehicle was released on superdari to the registered owner.

Prosecution evidence

6. During evidence, the prosecution examined two witnesses namely ASI Manjeet Singh (PW-1) and HC Karan Singh (PW-2). Both PWs deposed that on the date of the incident, they were posted at Kodia Pul on a special drive against drunk drivers. As per PW-1, the time of the incident was about 7:55PM, and as per PW-2 it was about 8:02 PM. They deposed that at the said time they noticed a motorcycle bearing registration number UP14FH2675 coming from old Delhi railway station and going towards HC Sen Marg. The said motorcycle was being driven by accused Deepak. As per PW-1, when he signalled the accused Deepak to stop the vehicle, he tried to flee from the spot. As per PW-2, accused Deepak stopped his vehicle on his own. Both witnesses deposed that upon checking the accused, they found the vehicle to be registered in the name of accused Poonam, who is the wife of accused Deepak. They also found that accused Deepak did not have a driving license. Further upon examining him with an alcometer, he was found to be drunk and having 109 mg/100 ml alcohol. Thereafter, PW-1 issued the present challans Ex. PW-1/A and Ex. PW-1/B. He also proved the alcometer slip Ex. PW-1/C which contains the result of the breath analysis STATE Vs. DEEPAK & Anr.

(Kotwali Traffic Circle) examination. Thereafter, the motorcycle was impounded. Both witnesses correctly identified the accused in court.

7. During cross-examination, PW-1 deposed that on the date of the incident, he had issued only one challan with respect to the offence of drunk driving. PW-1 further admitted that he had not recorded any video of the incident. He further denied the suggestion that the accused had consumed less than 30mg/100ml alcohol at the time of the incident.

8. PW-2 stated in his cross-examination that a total of about 30-35 challans were issued by them on the date of the incident. He again stated that they may have issued 10-15 challans, and that he does not recall the exact number.

Statement of accused

9. Vide order dated 28.04.2025 prosecution evidence was closed. Thereafter statement of the accused was recorded under Section 351 BNSS in which all incriminating evidence was put to him. The accused admitted that he had consumed alcohol on the date of the incident, however, he stated that being aware that he would have to drive his motorcycle, he had consumed less than 30 mg of alcohol which is the legally permissible limit for driving. He further admitted that he does not possess a driving license. He also admitted that he was examined with an alcometer, however he denied that the readings were 109 mg/100ml.

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10. Accused Poonam admitted in her examination that accused Deepak did not possess a driving license and that she permitted him to drive the same without a valid license.

11. Both accused opted to not lead evidence in their defence.

Final arguments

12. During final arguments, Ld. APP for State submitted the prosecution has successfully proved the guilt of both accused beyond reasonable doubt. It was submitted that the offence under Section 3/181 and 5/180 M.V. Act is sufficiently proved by the admission of accused Deepak and accused Poonam, along with the oral evidence of both PWs. Further with respect to the offence under Section 185 M.V. Act, it was argued that the oral testimonies of the prosecution witnesses are consistent on the point that upon examining the accused they found him to be drunk with 109 mg/100ml alcohol, and the same is duly corroborated by the result of the breath analysis examination which is Ex. PW-1/C. Therefore, it was prayed that both accused be convicted.

13. Per contra it was argued by Ld. counsel for the accused that the accused had been falsely implicated in the present matter. It was argued that the accused had consumed alcohol within

permissible limits, i.e. less than 30 mg/100 ml as he had to drive his motorcycle. It was argued that the challan was issued falsely as a part of a special drive organised by the traffic circle against drunk driving. It was further argued that in the absence of any videography of the process of breath analysis, the result of the STATE Vs. DEEPAK & Anr.

(Kotwali Traffic Circle) same is not reliable. Accordingly, it was prayed that the accused be acquitted.

Analysis

14. It is a settled principle of criminal jurisprudence that the burden of proof rests the prosecution to prove the case against the accused beyond reasonable doubt.

Drunk driving

15. To prove the offence under Section 185 MV Act the prosecution must establish that firstly the accused was driving or attempting to drive a motor vehicle, secondly while driving/attempting to drive the motor vehicle, the accused had in his blood, alcohol exceeding 30 mg. per 100 ml blood, thirdly such quantity of alcohol was detected in a test conducted by a breath analyser or any other laboratory test.

16. To prove the aforesaid ingredients, the prosecution has firstly placed reliance on the oral testimony of both prosecution witnesses. Both witnesses deposed that they saw accused Deepak driving a motorcycle, and after stopping him they subjected him to a breath analysis examination. The result as obtained by the examination was 109 mg/100 ml.

17. However, a careful scrutiny of their testimonies reveals that there are certain inconsistencies between both their versions. For instance, PW-1 stated that accused Deepak tried to flee when asked to stop, whereas the testimony of PW-2 makes a crucial omission of the mention of such an incident. Instead, PW-2 deposed that when accused Deepak was signalled to stop, STATE Vs. DEEPAK & Anr.

(Kotwali Traffic Circle) he stopped the vehicle. PW-1 stated in his cross-examination that they issued only 1 challan with respect to drunk driving while PW-2 without specifying the nature of challans stated that they issued more than 10 challans on the date of the incident.

18. Moreover, perusal of the record reveals that PW-1 has filed only a photocopy of the result of breath analysis and the same was Ex. PW-1/C, instead of filing the original. While, the same was not objected to by the accused, the prosecution has also not offered any explanation for not filing the original result.

19. Consideration of the said photocopy also reveals that while it records that the test was conducted on 16.04.2025, at 20:01 HRS, which corresponds with the version of events as deposed by the prosecution witnesses, the location coordinates of the place where the test was conducted has not been captured. Further, the said result neither bears the signatures of the challaning officer, nor that

of the accused.

20. As per the prosecution witnesses, the process of breath analysis was not videographed. While videography of the process is not mandated by law, the absence of the same definitely raises questions when there are holes in the story of the prosecution.

21. The defence of the accused is that while he had consumed alcohol, its quantity was less than 30 mg/100 ml. In a case of drunk driving, the result of the breath analysis is the clinching piece of evidence to establish the quantity of alcohol found in the body of the accused. In the present case, the absence of the STATE Vs. DEEPAK & Anr.

(Kotwali Traffic Circle) original breath analysis report, and the filing of an incomplete copy of the same, coupled with inconsistencies in the version of the prosecution witnesses, and lack of videography of the process of breath analysis certainly raises a doubt in favour of the accused.

22. Accordingly, this court is of the view that the benefit of doubt must be extended to the accused. Therefore, the accused is found not guilty with respect to the offence under Section 185 M.V. Act.

Driving without license

23. Before delving into the evidence in this regard, it would be appropriate to revisit the relevant legal principles.

24. As per Section 3 M.V. Act, no person shall drive a motor vehicle in any public place unless he holds an effective driving license issued to him authorising him to drive the vehicle. Section 181 M.V. Act prescribes a punishment of imprisonment for a term upto three months or fine of Rs. 5,000 or both for contravention of the said provision.

25. Section 5 M.V. Act is applicable to owners and persons in charge of a motor vehicle. It states that no such owner shall cause or permit any person who does not satisfy the provision of Section 3 M.V. Act to drive the vehicle. Vehicle owners who cause or permit persons to drive their vehicle without a driving license are liable for punishment under Section 180 M.V. Act with imprisonment for a term upto three months or fine of Rs. 5,000 or both.

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26. In their deposition before this court both prosecution witnesses stated that the accused could not produce his driving license. The accused failed to produce the same even during trial.

27. In his examination under Section 351 BNSS, accused Deepak categorically admitted that he does not possess a valid driving license. This admission, though not sufficient in and of itself to convict the accused, can be taken into consideration along with the oral evidence of the prosecution

witnesses to establish the fact that the accused was driving without license.

28. Further, it is undisputed that accused Poonam is the registered owner of the vehicle bearing registration no. UP-14FH-2675. In her examination under Section 351 BNSS she also admitted that accused Deepak does not possess a driving license. In these circumstances, it can be safely concluded that being the owner of the vehicle, accused Poonam permitted accused Deepak to drive the same in contravention of Section 3 of the M.V. Act.

29. Therefore, this court finds that the prosecution has successfully proved the guilt of accused Deepak under Section 3/181 M.V. Act and that of accused Poonam under Section 5/180 M.V. Act beyond reasonable doubt.

Conclusion

30. From the above-mentioned discussion, this court concludes the prosecution has successfully established the guilt of accused Deepak under 3/181 of M.V. Act and accused Poonam under Section 5/180 M.V. Act beyond reasonable doubt.

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(Kotwali Traffic Circle) However, accused Deepak is being given the benefit of doubt with respect to the offence under Section 185 M.V Act Accordingly, accused Deepak stands acquitted for the offence under Section 185 M.V. Act and convicted for the offences under Section 3/181 of M. V. Act and accused Poonam stands convicted for the offence under Section 5/180 M.V. Act.

Announced in open court today i.e. 10.06.2025.

GOWRI REGHUNATH
REGHUNATH Date: 2025.06.10
14:06:09 +0530

(GOWRI REGHUNATH)
JMFC-10/Central/THC
10.06.2025

It is certified that this judgment contains 10 pages and each page bears my signatures. Digitally signed by GOWRI GOWRI REGHUNATH REGHUNATH Date:

2025.06.10 14:06:13 +0530 (GOWRI REGHUNATH) JMFC-10/Central/THC
10.06.2025